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As part of a continuing effort to ensure that guidance issued by the Office of Aviation Consumer Protection (OACP) is up to date, this webpage has been placed in archived status. Some or all of the information may have been superseded by statute or rulemaking. Continued reliance on this page is not advised.

A Consumer Guide to Air Travel

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Notice: We make every effort to keep *Fly-Rights* up to date, but airlines frequently change the way they do business. So by the time you read this, a few procedures we explain may be different.

Introduction

The elimination of government regulation of airline fares and routes has resulted in lower fares and a wide variety of price/service options. In this new commercial environment, consumers have had to take a more active role in choosing their air service by learning to ask a number of questions:

- Am I more concerned with price or with schedule? Am I willing to fly at a less convenient time if it means saving $25?
- Will the airline penalize me for changing my reservation/
- Will I have to pay extra for checked bags or for seat assignments?
- What will the airline do for me if it cancels my flight?

- This booklet is designed to explain your rights and responsibilities as an air traveler and to show you how to avoid problems. We hope it helps you become a more resourceful consumer.

Air Fares

Because of the emphasis on price competition, consumers may choose from a wide variety of air fares. It is easy to compare fares and schedules on the Web, using airline web sites or third-party reservation services. You can also contact a travel agent, another ticket outlet, or the airlines serving the places you want to travel to. (Some airlines and other outlets charge a fee for tickets purchased by means other than the Web. On the other hand, a few airlines may charge a fee for tickets that are purchased via the Web.) You can also be alert to newspaper and radio ads, where airlines advertise many of the discounts available in your city. Finally, be alert to new companies serving the market. They may offer lower fares or different services than older established airlines. Here are some tips to help you decide among air fares:

- Be flexible in your travel plans in order to get the lowest fare. The best deals may be limited to travel on certain days of the week (particularly midweek or Saturday) or certain hours of the day (e.g., early-morning flights or overnight "red eyes"). When searching flights and fares on the Web you can usually specify whether your dates are flexible, and in the search results the fares are generally listed from lowest to highest. If you are shopping by phone or in person, after you get a fare quote ask the reservations agent if you could save even more by leaving a day earlier or later, or by taking a different flight on the same day.
- Plan as far ahead as you can. Some airlines set aside only a few seats on each flight at the lower rates. The real bargains often sell out very quickly. On the other hand, air carriers sometimes make more discount seats available later. If you had decided against a trip because the price you wanted was not available when you first inquired, try again, especially just before the advance-purchase deadline. Flights for holiday periods may sell out months ahead of time, although in many cases you can find a seat if you elect to travel on the holiday itself, e.g. Christmas Day or Thanksgiving Day.
- Some airlines may have discounts that others don't offer. In a large metropolitan area, the fare could depend on which airport you use. Also, a connection (change of planes) or a one-stop flight is sometimes cheaper than a nonstop.
- Be aware that many airlines charge extra for checked baggage, advance seat assignments, meals, or other services. Airlines include information on these fees on their web sites.
- If you have a connection involving two airlines, ask whether your bags will be transferred. Ask whether your ticket will be good on another carrier at no extra charge if your flight is canceled or experiences a lengthy delay, and whether the first airline will pay for meals or a hotel room during the wait.
- Most discount fares are non-refundable; if you buy one of these fares and you later cancel your trip, you will not get your money back. In many cases you can apply your ticket to another trip in the future, but there may be a steep fee. Many fares also have a penalty for changing flights or dates even if you don't want a refund. You may also have to pay any difference in air fares if your fare-type is not available on the new flight.
- After you buy your ticket, call the airline or travel agent once or twice before departure to check the fare. Fares change all the time, and if the fare you paid goes down before you fly, some airlines will refund the difference (or give you a transportation credit for that amount). But you have to ask.
- Differences in air fares can be substantial. Careful comparison shopping among airlines does take time, but it can lead to real savings.

Schedules and Tickets

Once you decide when and where you want to go, and which airline you want to use, you will usually have to purchase a ticket in order to hold a confirmed seat. However, many large airlines will hold a reservation for 24 hours or so without payment. Others require payment at the time you make a reservation but will provide a full refund if you cancel in the first day or so. When available, both of these procedures permit you to hold a seat and a fare for a short time while continuing to shop for a better deal. Be aware of the following considerations when selecting a flight and buying a ticket:

- Check the on-time performance percentage for flights that you are considering. On-time performance percentages for individual flights of the larger U.S. airlines are available by phone from those airlines upon request. These airlines are also required to post this information on their web sites, with special notice for flights that experienced serious delays or cancellations. If you are deciding between two flights with similar schedules and fares, you may want to choose the one with the better on-time record. (Only the largest U.S. airlines are required to maintain and provide on-time performance data.) You can see aggregate information about airline and airport on-time performance and a list of the most frequently delayed flights in DOT's monthly *Air Travel Consumer Report*. Also, the web site of DOT's Bureau of Transportation Statistics (www.bts.gov) contains detailed on-time performance data for the large U.S. airlines that are required to report this information.

- When you buy a ticket, be sure all of the information is recorded accurately. Before you click "Submit" or make a final commitment to a reservations agent, review all of the essential information ? the spelling of your name, the flight numbers and travel dates, and the cities you are traveling between. Use the form of your name that is on the photo ID that you will show at the airport. (For an international flight, this will be your passport.) If there is more than one airport at either city, be sure you check which one you'll be using. It's also important to give the airline more than one telephone number and an email address so they can let you know if there is any change in its schedule.
- A "direct" (or "through") flight with a single flight number can have one or more intermediate stops. A connection (change of planes) nearly always has a separate flight number for each flight, but sometimes the two flights are listed on the same line in schedules. Look carefully at the "Stops" column and the departure and arrival times to determine whether the flight suits your needs.
- If you are flying to a small city and your flight number has four digits, you may be booked on a commuter airline that has an agreement with the major carrier in whose name the flight is advertised and sold. Look for disclosures of these so-called "code-share" flights in the schedules, or ask the reservations agent. DOT requires that you be provided this information.
- As soon as you receive your ticket or email confirmation, check to make sure all the information on it is correct, especially your name, the airports (if any of the cities have more than one) and the flight dates. Pursue any necessary corrections immediately.
- You will need to show a government-issued photo I.D. when you fly. It is important that your name as it appears on the ticket is the same as it appears on the I.D. you will be using. If your name has recently changed and the name on your ticket and your I.D. are different (or will be different by the time of your trip), bring documentation of the change (e.g., a marriage certificate or court order).
- Many European countries ("the Schengen states") require that your passport be valid for at least three months beyond your planned date of departure from the Schengen area. For more information see the Department of State's Schengen web page at http://travel.state.gov/content/passports/en/go/schengen-fact-sheet.html.
- Re-check the departure and arrival times of your flights a few days before your trip; schedules sometimes change. On international trips, some airlines may require that you reconfirm your onward or return reservations at least 72 hours before each flight. If you don't, your reservations may be canceled.
- Bring your ticket or printed confirmation to the airport. You may also be able to print your boarding pass from the carrier’s web site within 24 hours of departure. This speeds your check-in and helps you avoid some of the tension you might otherwise feel if you had to wait in a slow-moving line at the airport.
- Payment by credit card provides certain protections under federal credit laws. When a refund is due, the airline must forward a credit to your card company within seven business days after receiving a complete refund application; however, the credit may take a month or two to appear on your statement. If you paid by credit card for a refundable fare and you have trouble getting a refund that you are due (e.g., you have a refundable fare, or you have a nonrefundable fare and the airline canceled your flight and you did not travel as a result), report this in writing to your credit card company. If you write to them within 60 days from the time that they mailed your first monthly statement showing the charge for the airline ticket, the card company should credit your account even if the airline doesn't. This procedure is particularly useful if your airline ceases operations before your flight.

NOTE: In some cases tickets purchased overseas in foreign currency can only be refunded in that same currency and country, due to foreign government monetary restrictions. Keep this in mind if you are considering buying a ticket in a foreign country.

Delayed and Cancelled Flights

Airlines don't guarantee their schedules, and you should realize this when planning your trip. There are many things that can-and often do-make it impossible for flights to arrive on time. Some of these problems, like bad weather, air traffic delays, and mechanical issues, are hard to predict and often beyond the airlines' control.

If your flight is delayed, try to find out how late it will be. But keep in mind that it is sometimes difficult for airlines to estimate the total duration of a delay during its early stages. In so- called "creeping delays," developments occur which were not anticipated when the carrier made its initial estimate of the length of the delay. Weather that had been forecast to improve can instead deteriorate, or a mechanical problem can turn out to be more complex than initially evaluated. If the problem is with local weather or air traffic control, all flights will probably be late and there's not much you or the airline can do to speed up your departure. If your flight is experiencing a lengthy delay, you might be better off trying to arrange another flight, as long as you don't have to pay a cancellation penalty or higher fare for changing your reservations. (It is sometimes easier to make such arrangements by phone than at a ticket counter.) If you find a flight on another airline, ask the first airline if it will endorse your ticket to the new carrier; this could save you a fare collection. Remember, however, that there is no rule requiring them to do this.

If your flight is canceled, most airlines will rebook you on their first flight to your destination on which space is available, at no additional charge. If this involves a significant delay, find out if another carrier has space and ask the first airline if they will endorse your ticket to the other carrier. Finding extra seats may be difficult, however, especially over holidays and other peak travel times.

Each airline has its own policies about what it will do for delayed passengers waiting at the airport; there are no federal requirements. If you are delayed, ask the airline staff if it will pay for meals or a phone call. Some airlines, often those charging very low fares, do not provide any amenities to stranded passengers. Others may not offer amenities if the delay is caused by bad weather or something else beyond the airline's control. Contrary to popular belief, for domestic itineraries airlines are not required to compensate passengers whose flights are delayed or canceled. As discussed in the chapter on overbooking, compensation is required by law on domestic trips only when you are "bumped" from a flight that is oversold. On international itineraries, passengers may be able to recover reimbursement under Article 19 of the Montreal Convention for expenses resulting from a delayed or canceled flight by filing a claim with the airline. If the claim is denied, you may pursue the matter in court if you believe that the carrier did not take all measures that could reasonably be required to avoid the damages caused by the delay.

If the purpose of your trip is to close a potentially lucrative business deal, give a speech or lecture, attend a family function, or connect to a cruise, you might want to allow a little extra leeway and take an earlier flight. In other words, airline delays aren't unusual, and defensive planning is a good idea when time is your most important consideration.

Some flights are delayed on the airport "tarmac" before taking off or after landing. DOT rules prohibit most U.S. airlines from allowing a domestic flight to remain on the tarmac for more than three hours unless:

- the pilot determines that there is a safety or security reason why the aircraft cannot taxi to the gate and deplane its passengers, or
- Air traffic control advises the pilot that taxiing to the gate (or to another location where passengers can be deplaned) would significantly disrupt airport operations.

U.S. airlines operating international flights to or from most U.S.airports must each establish and comply with their own limit on the length of tarmac delays on those flights. On both domestic and international flights, U.S. airlines must provide passengers with food and water no later than two hours after the tarmac delay begins. While the aircraft remains on the tarmac lavatories must remain operable and medical attention must be available if needed.

When booking your flight remember that a departure early in the day is less likely to be delayed than a later flight, due to "ripple" effects of delays throughout the day. Also, if an early flight does get delayed or canceled, you have more rerouting options. If you book the last flight of the day and it is canceled, you could get stuck overnight. You may select a connection (change of planes) over a nonstop or direct flight because of the convenient departure time or lower fare. However, a change of planes always involves the possibility of a misconnection. If you have a choice of connections and the fares and service are equivalent, choose the one with the least-congested connecting airport, so it will be easier to get to your second flight. You may wish to take into consideration the potential for adverse weather if you have a choice of connecting cities. When making your reservation for a connection, always check the amount of time between flights. Ask yourself what will happen if the first flight is delayed; if you don't like the answer, pick another flight or "construct" a connection that allows more time.

Overbooking

Overbooking is not illegal, and most airlines overbook their scheduled flights to a certain extent in order to compensate for "no-shows." Passengers are sometimes left behind or "bumped" as a result. When an oversale occurs, the Department of Transportation (DOT) requires airlines to ask people who aren't in a hurry to give up their seats voluntarily, in exchange for compensation. Those passengers bumped against their will are, with a few exceptions, entitled to compensation.

Voluntary Bumping

Almost any planeload of airline passengers includes some people with urgent travel needs and others who may be more concerned about the cost of their tickets than about getting to their destination on time. DOT rules require airlines to seek out people who are willing to give up their seats for compensation before bumping anyone involuntarily. Here's how this works. At the check-in or boarding area, airline employees will look for volunteers when it appears that the flight has been oversold. If you're not in a rush to arrive at your next destination, you can give your reservation back to the airline in exchange for compensation and a later flight. But before you do this, you may want to get answers to these important questions:

- When is the next flight on which the airline can confirm your seat? The alternate flight may be just as acceptable to you. On the other hand, if the airline offers to put you on standby on another flight that's full, you could be stranded.

- Will the airline provide other amenities such as free meals, a hotel room, transfers between the hotel and the airport, and a phone card? If not, you might have to spend the money it offers you on food or lodging while you wait for the next flight.

DOT has not mandated the form or amount of compensation that airlines offer to volunteers. DOT does, however, require airlines to advise any volunteer whether he or she might be involuntarily bumped and, if that were to occur, the amount of compensation that would be due. Carriers can negotiate with their passengers for mutually acceptable compensation. Airlines generally offer a free trip or other transportation benefits to prospective volunteers. The airlines give employees guidelines for bargaining with passengers, and they may select those volunteers willing to sell back their reservations for the lowest price. If the airline offers you a free ticket or a transportation voucher in a certain dollar amount, ask about restrictions. How long is the ticket or voucher good for? Is it "blacked out" during holiday periods when you might want to use it? Can it be used for international flights?

Involuntary Bumping

DOT requires each airline to give all passengers who are bumped involuntarily a written statement describing their rights and explaining how the carrier decides who gets on an oversold flight and who doesn't. Those travelers who don't get to fly are frequently entitled to denied boarding compensation in the form of a check or cash. The minimum amount depends on the price of the traveler's ticket and the length of the delay. DOT's requirements are the minimum but airlines may choose to provide a higher amount.

- If you are bumped involuntarily and the airline arranges substitute transportation that is scheduled to get you to your final destination (including later connections) within one hour of your original scheduled arrival time, there is no compensation.
- If the airline arranges substitute transportation that is scheduled to arrive at your destination between one and two hours after your original arrival time (between one and four hours on international flights), the airline must pay you, at a minimum, an amount equal to 200% of your one-way fare to your final destination that day, or $1,075, whichever amount is lower.
- If the substitute transportation is scheduled to get you to your destination more than two hours later (four hours
- internationally), or if the airline does not make any substitute travel arrangements for you, the minimum compensation doubles (400% of your one-way fare, or $2,150, whichever amount is lower).
- If your ticket does not show a fare (for example, a frequent-flyer award ticket or a ticket issued by a consolidator), your denied boarding compensation is based on the lowest cash, check or credit card payment charged for a ticket in the same class of service (e.g., coach, first class) on that flight.
- You always get to keep your original ticket and use it on another flight. If you choose to make your own arrangements, you can request an "involuntary refund" for the ticket for the flight you were bumped from. The denied boarding compensation is essentially a payment for your inconvenience.
- If you paid for optional services on your original flight (e.g., seat selection, checked baggage) and you did not receive those services on your substitute flight or were required to pay a second time, the airline that bumped you must refund those payments to you.

Like all rules, however, there are a few conditions and exceptions:

- To be eligible for compensation, you must have a confirmed reservation. A written confirmation issued by the airline or an authorized agent or reservation service qualifies you in this regard even if the airline can't find your reservation in the computer, as long as you didn't cancel your reservation or miss a reconfirmation deadline.
- Each airline has a check-in deadline, which is the amount of time before scheduled departure that you must present yourself to the airline at the airport. For domestic flights most carriers require you to be at the departure gate between 10 minutes and 30 minutes before scheduled departure, but some deadlines can be an hour or longer. Check-in deadlines on international flights can be as much as three hours before scheduled departure time. Some airlines may simply require you to be at the ticket/baggage counter by this time; most, however, require that you get all the way to the boarding area. Some may have deadlines at both locations. If you miss the check-in deadline, you may have lost your reservation and your right to compensation if the flight is oversold.

As noted above, no compensation is due if the airline arranges substitute transportation which is scheduled to arrive at your destination within one hour of your originally scheduled arrival time.

If the airline must substitute a smaller plane for the one it originally planned to use, the carrier isn't required to pay people who are bumped as a result. In addition, on flights using aircraft with 30 through 60 passenger seats, compensation is not required if you were bumped due to safety-related aircraft weight or balance constraints.

The rules do not apply to charter flights, or to scheduled flights operated with planes that hold fewer than 30 passengers. They don't apply to international flights inbound to the United States, although some airlines on these routes may follow them voluntarily. Also, if you are flying between two foreign cities -- from Paris to Rome, for example -- these rules will not apply. The European Commission has a

rule on bumpings that occur in an EC country; ask the airline for details, or go to http://ec.europa.eu/transport/passengers/air/air_en.htm.

Airlines set their own "boarding priorities" -- the order in which they will bump different categories of passengers in an oversale situation. When a flight is oversold and there are not enough volunteers, some airlines bump passengers with the lowest fares first. Others bump the last passengers to check in. Once you have purchased your ticket, the most effective way to reduce the risk of being bumped is to get to the airport early. For passengers in the same fare class the last passengers to check in are usually the first to be bumped, even if they have met the check-in deadline. Allow extra time; assume that the roads are backed up, the parking lot is full, and there is a long line at the check-in counter.

Airlines may offer free tickets or dollar-amount vouchers for future flights in place of a check for denied boarding compensation. However, if you are bumped involuntarily you have the right to insist on a check if that is your preference. Once you cash the check (or accept the free flight), you will probably lose the ability to pursue more money from the airline later on. However, if being bumped costs you more money than the airline will pay you at the airport, you can try to negotiate a higher settlement with their complaint department. If this doesn't work, you usually have 30 days from the date on the check to decide if you want to accept the amount of the check. You are always free to decline the check (e.g., not cash it) and take the airline to court to try to obtain more compensation. DOT's denied boarding regulation spells out the airlines' minimum obligation to people they bump involuntarily. Finally, don't be a "no-show." If you are holding confirmed reservations you don't plan to use, notify the airline. If you don't, they will cancel all onward or return reservations on your trip.

When an airlines determines that one or more passengers will be involuntarily bumped because the flight is oversold, the airline generally selects those passengers at the gate area before those passengers are accepted for boarding and allowed to board the flight. Once a passenger has been accepted for boarding or has already boarded the flight, airlines are not permitted to require that passenger deplane, unless the removal of the passenger is required by safety, security, or health reasons, or the removal is due to the passenger's unlawful behavior.

Baggage

Between the time you check your luggage in and the time you claim it at your destination, it may have passed through a maze of conveyor belts and baggage carts. Once airborne, baggage may tumble around the cargo compartment if the plane hits rough air. In all fairness to the airlines, however, relatively few bags are damaged or lost. With some common-sense packing and other precautions, your bags will likely be among the ones that arrive safely.

Packing

You can pack to avoid problems. Certain items should never be put into a piece of luggage that you plan to check into the baggage compartment:

- Small valuables: cash, credit cards, jewelry, an expensive camera.
- Critical items: medicine, keys, passport, tour vouchers, business papers.
- Irreplaceable items: manuscript, heirlooms.
- Fragile items: eyeglasses, glass containers, liquids.

Things like this should be carried on your person or packed in a carry-on bag. Remember, the only way to be sure your valuables are not damaged or lost is to keep them with you. Full flights sometimes run out of room in the cabin for full-size carry-on bags. In those situations the airline must sometimes "gate check" the carry-on baggage of the last passengers to board the flight. This happens near the door to the aircraft. Pack your carry-on bag in a manner so that if it must be gate-checked you can quickly remove the fragile, valuable and critical items described above. For example, consider packing all such items in a small, soft bag that will fit under the seat in front of you, and make sure that this small bag is easily accessible in your carry-on bag.

Although only a tiny percentage of checked bags are permanently lost, your bag might be delayed for a day or two. Don't put perishables in a checked bag; they may spoil if it is delayed. It is wise to put items that you will need during the first 24 hours in a carry-on bag (e.g. toiletries, a change of underwear). Check with the airline for its limits on the size, weight, and number of carry-on pieces. As of this writing, on most flights you are allowed to carry on one bag plus one personal item (e.g., purse, briefcase, camera bag, laptop computer bag).

If you are using more than one airline, check with all of them. Inquire about your flight; different airplanes can have different limits. Don't assume that the flight will have closet space for every carry-on garment bag; yours may have to be checked. If you plan to go shopping at your destination and bring your purchases aboard as carry-on, keep the limits in mind. If you check these purchases, however, carry the receipts separately; they may be necessary for a claim if the merchandise is lost or damaged. Don't put anything into a carry-on bag that could be considered a weapon (e.g. certain scissors, pocket knives). Check the web site of the Transportation Security Administration (TSA) for restrictions on carry-on baggage by click "Travelers."

As with carry-ons, checked baggage is subject to limits. Some airlines permit one or two checked bags at no charge; other carriers charge for even one checked bag. There can also be an extra charge if you exceed the airline's limits on the size, weight or number of the bags.

On some flights between two foreign cities, your allowance may be lower and may be based primarily on the weight of the checked bags rather than the number of pieces. The same two bags that cost you nothing to check when you started your trip could result in expensive excess-baggage charges under a weight system. Ask the airlines about the limit for every segment of your international trip before you leave home, especially if you have a stopover of a day or two or if you are changing carriers.

The bags you check should be labeled ? inside and out ? with your name and phone number. Add the name and phone number of a person to contact at your destination if it's practical to do so. Almost all of the bags that are misplaced by airlines do turn up sooner or later. With proper labeling, the bag and its owner can usually be reunited within a few hours.

Don't overpack a bag. This puts pressure on the latches, making it easier for them to pop open. If you plan to check any glassware, musical instruments or other fragile items, they should be packed in a container specifically designed to survive rough handling, preferably a factory-sealed carton or a padded hard-shell carrying case.

Check-in

Don't check in at the last minute. Even if you make the flight, your bag may not. If you miss the airline's check-in deadline, the carrier might not assume liability for your bag if it is delayed or lost. If you have a choice, select flights that minimize the potential for baggage disruption. The likelihood of a bag going astray increases from #1 to #4 below (i.e., #1 is safest): 1) nonstop flight; 2) direct or 'through' flight (one or more stops, but no change of aircraft); 3) online connection (change of aircraft but not airlines); and 4) interline connection (change of aircraft and airlines)

When you check in, remove straps and hooks from garment bags that you are sending as checked baggage. These can get caught in baggage processing machinery, causing damage to the bag.

The airline will put baggage destination tags on your luggage and give you the stubs to use as claim checks. Make sure you get a stub for every bag. Don't throw them away until after you get your bags back and you check the contents. Not only will you need them if a claim is necessary, but you may need to show them to security upon leaving the baggage-claim area.

Your bags may only be checked to one of your intermediate stops rather than your destination city if you must clear Customs short of your final destination, or if you are taking a connection involving two airlines that don't have an interline agreement. Be sure all of the tags from previous trips are removed from your bag, since they may cause your bag to go astray.

Claiming your bags

Many bags look alike. After you pull what you think is your bag off the carousel, check the name tag or the bag tag number. If your bag arrives open, unlocked or visibly damaged, check right away to see if any of the contents are missing or damaged. Report any problems to the airline before leaving the airport; insist on having a report created. Open your suitcase immediately when you get to where you are staying. Any damage to the contents or any pilferage should be immediately reported to the airline by telephone. Make a note of the date and time of the call, and the name and telephone number of the person you spoke with. Follow up as soon as possible with a certified letter to the airline.

Damage

If your suitcase arrives smashed or torn, the airline will usually pay for repairs. If it can't be fixed, they will negotiate a settlement to pay you its depreciated value. The same holds true for belongings packed inside. Airlines may decline to pay for damage caused by the fragile nature of the broken item or inadequate packing, rather than the airline's rough handling. Air carriers might also refuse to compensate you for damaged items inside the bag when there's no evidence of external damage to the suitcase. When you check in,

airline personnel may let you know if they think your suitcase or package may not survive the trip intact. Before accepting a questionable item, they may ask you to sign a statement in which you agree to check it at your own risk. But even if you do sign this form, the airline might be liable for damage if it is caused by its own negligence shown by external injury to the suitcase or package.

Delayed bags

If you and your suitcase don't connect at your destination, don't panic. The airlines have very sophisticated systems that track down the vast majority of misplaced bags and return them to their owners within hours. In many cases they will absorb reasonable expenses you incur while they look for your missing belongings. You and the airline may have different ideas of what's reasonable, however, and the amount it will pay is subject to negotiation.

If your bags don't come off the conveyor belt, report this to airline personnel before you leave the airport. Insist that they create a report and give you a copy, even if they say the bag will be in on the next flight. Get an appropriate phone number for following up (not the Reservations number). Don't assume that the airline will deliver the bag without charge when it is found; ask the airline about this. Most carriers set guidelines for their airport employees that allow them to disburse some money at the airport for emergency purchases. The amount depends on whether or not you're away from home and how long it takes to track down your bags and return them to you. If the airline does not provide you a cash advance, it may still reimburse you later for the purchase of necessities. Discuss with the carrier the types of articles that would be reimbursable, and keep all receipts. If the airline misplaces sporting equipment, it will sometimes pay for the rental of replacements. For replacement clothing or other articles, the carrier might offer to absorb only a portion of the purchase cost, on the basis that you will be able to use the new items in the future. (The airline may agree to a higher reimbursement if you turn the articles over to them.)

When you've checked in fresh foods or any other perishable goods and they are ruined because their delivery is delayed, the airline won't reimburse you. Carriers may be liable if they lose or damage perishable items, but they won't accept responsibility for spoilage caused by a delay in delivery.

Airlines are liable for provable consequential damages up to the amount of their liability limit (see below) in connection with the delay. If you can't resolve the claim with the airline's airport staff, keep a record of the names of the employees with whom you dealt, and hold on to all travel documents and receipts for any money you spent in connection with the mishandling. (It's okay to surrender your baggage claim tags to the airline when you fill out a form at the airport, as long as you get a copy of the form and it notes that you gave up the tags.) Contact the airline's baggage claims office or consumer office when you get home.

Lost luggage

Once your bag is declared (permanently) lost, you will have to submit a claim. This usually means you have to fill out a second, more detailed form. Check on this; failure to complete the second form when required could delay your claim. Missing the deadline for filing it could invalidate your claim altogether.

The airline will usually refer your claim to a central office, and the negotiations between you and the airline will begin. If your flight was a connection involving two carriers, the final carrier is normally the one responsible for processing your claim even if it appears that the first airline lost the bag. Airlines don't automatically pay the full amount of every claim they receive. First, they will use the information on your form to estimate the value of your lost belongings. Like insurance companies, airlines consider the depreciated value of your possessions, not their original price or the replacement costs. If you're tempted to exaggerate your claim, don't. Airlines may completely deny claims they feel are inflated or fraudulent. They often ask for sales receipts and other documentation to back up claims, especially if a large amount of money is involved. If you don't keep extensive records, you can expect to negotiate with the airline over the value of your goods. Generally, it takes an airline anywhere from four weeks to three months to pay passengers for their lost luggage. When airlines tender a settlement, they may offer you the option of free tickets on future flights in a higher amount than the cash payment. Ask about all restrictions on these tickets, such as "blackout" periods.

Limits on liability

Airlines assert a limit on their liability for delayed, lost or damaged checked baggage. When your luggage and its contents are worth more than the liability limit, you may want to purchase "excess valuation," if available, from the airline as you check in. This is not insurance, but it will increase the carrier's potential liability. The airline may refuse to sell excess valuation on some items that are especially valuable or breakable, such as antiques, musical instruments, jewelry, manuscripts, negotiable securities and cash.

On domestic trips, the airline can invoke a liability ceiling that is regulated by DOT and that is adjusted for inflation every two years. That limit is currently $4,700 per passenger.

On international round trips that originate in the United States, the liability limit is set by a treaty called the Montreal Convention. This treaty also governs liability on international round trips that originate in another country that has ratified this Convention, and one-way trips between the U.S. and such a country. This international limit is reviewed for inflationary adjustment every five years; it is currently 1,288 Special Drawing Rights. The SDR is a currency surrogate that floats daily; check with the International Monetary Fund (IMF) to see the current exchange rate. At this writing 1,288 SDRs was worth about $1,700. The international limit applies to domestic segments of an international journey. In certain very limited circumstances, this may be the case even if the domestic and international flights are on separate tickets and you claim and re-check your bag between the two flights.

Keep in mind that the liability limits are maximums. If the depreciated value of your property is worth less than the liability limit, this lower amount is what you will be offered. If the airline's settlement doesn't fully reimburse your loss, check your homeowner's or renter's insurance; it sometimes covers losses away from the residence. Some credit card companies and travel agencies offer optional or even automatic supplemental baggage coverage.

Special liability requirements apply to the domestic transportation of assistive devices used by passengers with disabilities. For more information, read our page about wheelchairs and assistive devices or the publication *New Horizons: Information for the Air Traveler with a Disability*.

Hazardous Items

There are restrictions on carrying materials that could be hazardous in an aircraft environment. For example, matches are not permitted in checked bags. For details on hazardous materials, go to www.faa.gov >> Travelers, and www.tsa.gov >> Travelers.

Smoking

Under U.S. government rules, smoking is prohibited on all scheduled-service flights of U.S. airlines. As a general matter, foreign airlines must also ban smoking on all scheduled-service flight segments in, to and from the United States. Cigar and pipe smoking is banned on all U.S.-carrier flights (both scheduled and charter).

On flights where smoking is not banned by law (e.g., charter flights), airlines must have a non-smoking section and must accommodate in that section every passenger who has complied with the airline’s check-in deadline and who wishes to be seated there. On these flights, carriers are not required to have a smoking section. An airline is free to ban smoking on a particular flight, or on all of its flights.

None of the regulations described in this chapter apply to charter flights performed with small aircraft by on-demand air taxi operators.

Passengers with Disabilities

The Air Carrier Access Act and the DOT rule that implements it set out procedures designed to ensure that individuals with disabilities have the same opportunity as anyone else to enjoy a pleasant flight. For information about these provisions, see the DOT publication *New Horizons: Information for the Air Traveler With a Disability*.

Frequent-Traveler Programs

Most if not all major airlines participate in frequent-traveler plans. These programs allow you to earn free trips, upgrades (e.g., from Coach to First Class) or other awards based on how often you fly on that airline or its partner carriers. In most programs you can also earn credit by using specified hotels, rental car companies, credit cards, etc. It doesn't cost anything to join a program, and you can enroll in the programs of any number of different airlines. However, you will want to determine which program best suits your needs before you accumulate a lot of miles. Here are some things to look at when selecting a frequent-traveler program.

- Does the airline fly where you're likely to want to go?
- Are there tie-ins with other carriers, especially those with international routes? Is some of the airline's service provided by commuter-carrier "partners"? In both cases, can you earn credits and use awards on those other airlines?
- How many miles (or trips) are required for particular awards?
- Is there a minimum award per flight (e.g., you are only flying 200 miles but the airline always awards at least 500)?
- Is there a deadline for using accumulated miles?
- Carefully examine the number and length of any "blackout periods" during which awards cannot be used. For example, on some carriers the Thanksgiving blackout may last a week.
- If you are planning a big trip involving air travel and are thinking about joining that airline's frequent-flyer program, enroll before you travel. Airlines usually won't credit mileage that was flown before you became a member.

After you join a program, there are other things that you should know:

- Airlines reserve the right to make changes to their programs, sometimes on short notice. The number of miles required for particular awards might be raised, requiring you to use your old mileage (i.e., your current balance) under the more restrictive new rules. The airline may cease service on a route that you were particularly interested in, or it may even stop serving the city you live in. The carrier may eliminate attractive frequent-flyer tie-ins with particular airlines or hotel chains.
- Cashing in your mileage frequently will limit your losses in case the carrier changes the rules, merges, or goes out of business. Accumulating a larger mileage balance will entitle you to bigger awards, however.
- Carriers often limit the number of seats on each flight for which frequent-flyer awards can be used. You may not be able to get reservations on your first- or second-choice dates or flights.
- Awards can often be issued in the name of immediate family members. However, if you sell or give an award to someone not named on the award or the travel document and the airline finds out, the recipient could have his or her ticket confiscated, and the carrier may penalize the program member's account balance.
- Ask the airline how mileage is registered; you will probably have to identify yourself as a program member when you book your flight or when you check in.
- Keep your ticket (or email confirmation) and your boarding passes until you receive a statement from the frequent-flyer program reflecting the correct mileage earnings for that trip. If a problem arises, get the names of the people you speak with and keep notes of your conversations.

Contract Terms

Throughout this booklet, we have tried to provide you general information about airline travel. It is important to realize, however, that each airline has specific rules that make up your contract of carriage. These rules may differ among carriers. They include provisions such as check-in deadlines, refund procedures, responsibility for delayed flights, and many other things.

Domestic Travel

For domestic travel, an airline may provide all of its contract terms on or with your ticket at the time you buy it. Some small "commuter" carriers use this system. Other airlines may elect to "incorporate terms by reference." This means that you are not given all the airline's rules with your ticket - most of them are contained in a separate document which you can inspect on request or on the airline’s web site. If an airline elects to "incorporate by reference" it must provide conspicuous written notice with each ticket that: 1) it incorporates terms by reference, and 2) these terms may include liability limitations, claim-filing deadlines, check-in deadlines, and certain other key terms. The airline must also:

- Ensure that passengers can receive an explanation of key terms identified on the ticket from any location where the carrier's tickets are sold, including travel agencies;
- Make available for inspection the full text of its contract of carriage at each of its own airport and city ticket offices;
- Mail a free copy of the full text of its contract of carriage upon request.

DOT also requires most U.S.airlines to post their contracts of carriage on their web site, if they have one.

There are additional notice requirements for contract terms that affect your air fare. Airlines must provide a conspicuous written notice on or with the ticket concerning any "incorporated" contract terms that restrict refunds, impose monetary penalties, or permit the airline to raise the price after you've bought the ticket.

If an airline incorporates contract terms by reference and fails to provide you the required notice about a particular rule, you will not be bound by that rule. In addition, a DOT rule prohibits airlines from changing a term in your contract after you buy your ticket if the change will have a significant negative effect on you.

International Travel

Not all of the detailed requirements for disclosing domestic contract terms apply to international travel. Where they do not, the airline must keep a copy of its "tariff" rules at its airport and city ticket offices. On flights to or from the U.S., you have a right to examine these rules.

The most important point to remember, whether your travel is domestic or international, is that you should not be afraid to ask questions about a carrier's rules. You have a right to know the terms of your contract of carriage. It is in your best interest, as well as that of the airline, for you to ask in advance about any matters of uncertainty.

Travel Scams

Unlike most products, travel services usually have to be paid for before they are delivered. This creates opportunities for disreputable individuals and companies. Some travel packages turn out to be very different from what was presented or what the consumer expected. Some don't materialize at all! If you receive an offer by phone or mail for a free or extremely low-priced vacation trip to a popular destination (often Hawaii or Florida), there are a few things you should look for:

- Does the price seem too good to be true? If so, it probably is.
- Are you pressured to make an immediate decision?
- Is the carrier simply identified as "a major airline," or does the representative offer a collection of airlines without being able to say which one you will be on?
- Is the representative unable or unwilling to give you a street address for the company?
- Are you told you can't leave for at least two months? (The legal deadline for disputing a credit card charge is 60 days, and most scam artists know this.)

If you encounter any of these symptoms, proceed cautiously. Ask for written information to be sent to you; any legitimate travel company will be happy to oblige. If they don't have a brochure, ask for a day or two to think it over; most bona fide deals that are good today will still be good two days from now. If they say no to both requests, this probably isn't the trip for you. Some other advice:

- If you are told that you've won a free vacation, ask if you have to buy something else in order to get it. Some packages have promoted free air fare, as long as you buy expensive hotel arrangements. Others include a free hotel stay, but no air fare.
- If you are seriously considering the vacation offer and are confident you have established the full price you will pay, compare the offer to what you might obtain elsewhere. Frequently, the appeal of free air fare or free accommodations disguises the fact that the total price is still higher than that of a regular package tour.
- Get a confirmed departure date, in writing, before you pay anything. Eye skeptically any promises that an acceptable date will be arranged later. If the package involves standby or waitlist travel, or a reservation that can only be provided much later, ask if your payment is refundable if you want to cancel, and don't pay any money you can't afford to lose.
- If the destination is a beach resort, ask the seller how far the hotel is from the beach. Then ask the hotel.
- Determine the complete cost of the trip in dollars, including all service charges, taxes, processing fees, etc.
- If you decide to buy the trip after checking it out, paying by credit card gives you certain legal rights to pursue a chargeback (credit) if promised services aren't delivered.

For further advice, see "Other Sources of Information" at the end of this brochure for details on how to order the Federal Trade Commission's pamphlet Telemarketing Travel Fraud.

To Your Health

Flying is a routine activity for millions of Americans, and raises no health considerations for the great majority of them. However, there are certain things you can do to ensure that your flight is as comfortable as possible. Changes in pressure can temporarily block the Eustachian tube, causing your ears to 'pop' or to experience a sensation of fullness. To equalize the pressure, swallow frequently; chewing gum sometimes helps. Yawning is also effective. Avoid sleeping during descent; you may not swallow often enough to keep ahead of the pressure change.

Babies are especially troubled by these pressure changes during descent. Having them feed from a bottle or suck on a pacifier will often provide relief. Avoid flying if you have recently had abdominal, eye or oral surgery, including a root canal. The pressure changes that occur during climb and descent can result in discomfort. If you have an upper respiratory or sinus infection, you may also experience discomfort resulting from pressure changes. Postpone your trip if possible. (Check to see if your fare has cancellation or change penalties.) A final tip on pressure changes: they cause your feet to swell. Try not to wear new or tight shoes while flying.

Alcohol and coffee both have a drying effect on the body. Airliner cabin air is relatively dry to begin with, and the combination can increase your chances of contracting a respiratory infection. If you wear contact lenses, the low cabin humidity and/or consumption of alcohol or coffee can reduce your tear volume, leading to discomfort if you don't blink often enough. Lens wearers should clean their lenses thoroughly before the flight, use lubricating eye drops during the flight, read in intervals, and take the lenses out if they nap. (This may not apply to extended wear lenses; consult your practitioner.) If you take prescription medications, bring enough to last through your trip. Take along a copy of the prescription, or your doctor's name and telephone number, in case the medication is lost or stolen. The medicine should be in the original prescription bottle in order to avoid questions at security or Customs inspections. Carry it in a pocket or a carry-on bag; don't pack it in a checked bag, in case the bag is lost.

You can minimize the effects of jet lag in several ways:

- Get several good nights' sleep before your trip.
- Try to take a flight that arrives at night, so you can go straight to bed.
- Sleep on the plane (although not during descent).
- During the flight do isometric exercises, eat lightly, and drink little or no alcohol.

A condition known as Deep Venous Thrombosis can occur in some people who don’t exercise their legs for several hours ? for example, during an airline flight. Consider walking up and down the aisle once or twice, and search the web for exercises that you can do at your seat to minimize the risk of developing this condition during a flight.

Try to use a rest room in the airport terminal before departure. On some flights the cabin crew begins beverage service shortly after the "Fasten Seat Belts" sign is turned off, and the serving cart may block access to the lavatories.

Airline Safety and Security

Air travel is so safe you'll probably never have to use any of the advice we're about to give you. But if you ever do need it, this information could save your life. Airline passengers usually take safety for granted when they board an airplane. They tune out the crew's pre-flight announcements or reach for a magazine instead of the cards that show how to open the emergency exit and what to do if the oxygen mask drops down. Because of this, people may be needlessly hurt or killed in accidents they could survive. Every time you board a plane, here are some things you should do:

- Carry-on bags must be properly stowed in overhead bins or under the seat in front of you. Be careful about what you put into the storage bins over your seat. Their doors may pop open during an accident or even a hard landing, spilling their contents. Also, passengers in aisle seats have been injured by heavy items falling out of these compartments when people are stowing or retrieving belongings at the beginning or end of a flight.
- As soon as you sit down, fasten and unfasten your seat belt a couple of times. Watch how it works. In an emergency you don't want to waste time fumbling with the buckle.
- Before take-off, there will be a briefing about safety procedures, pointing out emergency exits and explaining seat belts, life vests and oxygen masks. Listen carefully and if there's anything you don't understand ask the flight attendants for help.

The plastic card in the seat pocket in front of you will review some of the safety information announced by the flight attendant. Read it. It also tells you about emergency exits and how to find and use emergency equipment such as oxygen masks. As you're reading the card look for your closest emergency exit, and count the number of rows between yourself and this exit. Remember, the closest exit may be behind you. Have a second escape route planned in case the nearest exit is blocked. This is important because people sometimes head for the door they used to board the plane, usually in the front of the first class cabin. This wastes time and blocks the aisles. If the oxygen masks should drop, you must tug the plastic tube slightly to get the oxygen flowing. If you don't understand the instructions about how the mask works, ask a flight attendant to explain them to you.

When the plane is safely in the air, the pilot usually turns off the "fasten seat belt" sign. He or she usually suggests that passengers keep their belts buckled anyway during the flight in case the plane hits rough air. This is a good idea; there have been a number of instances of unexpected turbulence in which unbelted passengers were seriously injured and even killed when they were thrown about the cabin. Just as seat belts should always be worn in cars, in airplanes they should always be fastened when you are in your seat.

If you are ever in an aviation accident, you should remember these things:

- Stay calm.
- Listen to the crew members and do what they say. The cabin crew's most important job is to help you evacuate safely.
- Before you try to open any emergency exit yourself, look outside the window. If you see a fire outside the door, don't open it or the flames may spread into the cabin. Try to use your alternate escape route.
- Remember, smoke rises. So try to stay down if there's smoke in the cabin. Follow the track of emergency lights embedded in the floor; they lead to an exit. If you have a cloth, put it over your nose and mouth.

After an air accident, the National Transportation Safety Board always talks to survivors to try to learn why they were able to make it through safely. They've discovered that, as a rule, it does help to be prepared. Avoiding serious injury or surviving an air accident isn't just a matter of luck; it's also a matter of being informed and thinking ahead.

Are you one of those people who jumps up while the aircraft is still taxiing, gathers up coat, suitcase and briefcase, and gets ready to sprint? If so, resist the urge. Planes sometimes make sudden stops when they are taxiing to the airport gate, and passengers have been injured when they were thrown onto a seat back or the edge of a door of an overhead bin. Stay in your seat with your belt buckled until the plane comes to a complete halt and the 'fasten seat belt' sign is turned off.

Never smoke in airplane restrooms. Smoking was banned there after an accident killed 116 people in only 4 minutes, apparently because a careless smoker left a burning cigarette butt in the trash bin. There is a steep fine for disabling a lavatory smoke detector.

Security procedures are administered by the Transportation Security Administration, an agency of the Department of Homeland Security. For more information, go to www.tsa.gov and click "For Travelers." Note in particular the identification provisions, and restrictions concerning carry-on baggage (particularly the "3-1-1" procedure for liquids and gels in carry-on bags), and the list of prohibited items. At this writing, cabin baggage is generally limited to one carry-on bag plus one personal item (e.g. purse, briefcase, camera bag, laptop computer).

Complaining

How to File Complaints Directly With Airlines

DOT rules require U.S. and foreign airlines that operate flights to, from, or within the United States to provide information on how to file a complaint with the carrier. This information must appear on their web sites, on all e-ticket confirmations, and upon request at any of the airline’s ticket counters or gates. When passengers comment on airline service, most airlines do listen.

Airlines typically track and analyze the complaints they receive and use the information to determine what the public wants and to identify problem areas that need attention. A DOT rule requires that airlines acknowledge a written complaint within 30 days and send a substantive response within 60 days of receiving the complaint.

Like other businesses, airlines have a lot of discretion in how they respond to problems. While you do have certain rights as a passenger, your demands for compensation when not required by law will probably be subject to the carrier’s discretion. Before you contact DOT for help with an air travel problem, we encourage you to give the airline a chance to resolve it. As a rule, airlines have trouble-shooters at the airports (they're usually called Customer Service Representatives) who can take care of many problems on the spot. They can often arrange meals and hotel rooms for stranded passengers, write checks for denied boarding compensation, arrange luggage resolutions, and settle other routine claims or complaints.

If you can't resolve the problem at the airport and want to file a complaint, it's best to write or email the airline's consumer office at its corporate headquarters. Information on how to file complaints with an airline will be available on the airline’s website. Include in your complaint any notes that you took at the time the incident occurred including the names of the carrier employees with whom you dealt. Keep all of your travel documents (ticket or confirmation, baggage check stubs, boarding pass, etc.) as well as receipts for any out-of-pocket expenses that were incurred as a result of the mishandling. Here are some helpful tips should you choose to send a complaint.

- Include your daytime telephone number (with area code).
- No matter how angry you might be, keep your letter or email businesslike in tone and don't exaggerate what happened. If the complaint sounds very vehement or sarcastic, you might wait a day and then consider revising it.
- Describe what happened, and give dates, cities, and flight numbers or flight times.
- Where possible, include copies, never the originals, of tickets and receipts or other documents that can back up your claim.
- Include the names of any employees who were rude or made things worse, as well as anyone who might have been especially helpful.
- Don't clutter your complaint with minor matters that can obscure what you're really angry about.
- Let the airline know if you've suffered any special inconvenience or monetary losses.
- Say just what you expect the carrier to do to make amends. An airline may offer to settle your claim with a check or some other kind of compensation, possibly free transportation. You might want a written apology from a rude employee or reimbursement for a loss you incurred but the airline needs to know what you want before it can decide what action to take.
- Be reasonable. If your demands are way out of line, you are rude or sarcastic, or you use vulgar language, at best your letter might earn you a polite apology.

If you follow these guidelines, the airlines will probably treat your complaint seriously. Your letter will help them to determine what caused your problem, as well as to suggest actions the company can take to keep the same thing from happening to other people.

Contacting the U.S. Department of Transportation (DOT)

Complaints about airline service may be filed with DOT's Office of Aviation Consumer Protection. OACP encourages you to first contact the airline or travel agency for help with an air travel problem as these entities may be able to take care of the problem quickly. If the airline or ticket agent does not resolve an air travel service issue to your satisfaction, you can easily file a complaint by using our web-based complaint form.

You may send DOT correspondence by mail at the address below.

Office of Aviation Consumer Protection
U.S. Department of Transportation
1200 New Jersey Avenue, SE
Washington, DC 20590

In your letter, please provide the following information when submitting a complaint against an airline or ticket agent:

- your full name and contact information such as physical address, email address, and telephone number,
- a description of the air travel problem you had or are having,
- your booking details (ticket/itinerary/invoice),
- flight details (dates/flight numbers/city pairs), and
- any supporting documentation such as a copy of the complaint you filed with the airline or ticket agent if available.

Overview of DOT's Complaint Handling Process

The U.S. Department of Transportation (DOT) Office of Aviation Consumer Protection (OACP) handles complaints about airline service. When a consumer submits an air travel service complaint to DOT against an airline or a travel agency, OACP ensures that the appropriate entity receives the complaint and directs it to respond directly to the consumer with a copy to OACP.

Complaints from consumers are helpful to track trends or spot areas of concern that warrant further action. We use our complaint files to document the need for changes in DOT's consumer protection regulations and, where warranted, as the basis for enforcement action (i.e., where a serious breach of the law has occurred).

Further, every month, DOT publishes its Air Travel Consumer Report, which contains information about the number of complaints the Department receives about each airline and travel agency and what problems people are having. This report is made available to the public so that consumers can compare the complaint records of individual airlines and travel agencies. The data in this report also serve as a basis for rulemaking, legislation, and research.

Civil Rights Complaint Process

- Federal laws prohibit airlines from discriminating against an air traveler because of his or her disability, race, color, national origin, religion, sex, or ancestry.
- OACP will direct airlines receiving discrimination complaints to respond directly to the complainants and provide a copy of the response to OACP.
- OACP will investigate every complaint that it receives alleging discrimination based on a protected ground and will provide its findings to the consumer at the conclusion of the investigation.
- Due to the volume of complaints received, and the thoroughness of this process, it may take some time to fully investigate your complaint.

Consumer Complaints Process

- Federal laws protect airline passengers in a variety of areas, including when a flight is oversold, luggage is mishandled, a flight is delayed on the tarmac, and refunds are due.
- OACP will direct the identified airline and/or ticket agent to respond directly to you regarding your complaint. OACP will also require that a copy of the response be provided to it.

- OACP does not investigate every consumer complaint received due to the volume of complaints received.
- OACP conducts targeted or sample reviews of consumer complaints to determine airlines' and travel agencies' compliance with aviation consumer protection requirements.

Your Last Resort

If nothing else works, small claims court might be the best way for you to help yourself. Many localities have these courts to settle disputes involving relatively small amounts of money and to reduce the red tape and expense that people generally fear when they sue someone. An airline can generally be sued in small claims court in any jurisdiction where it operates flights or does business. You can usually get the details of how to use the small claims court in your community by contacting your city or county office of consumer affairs, or the clerk of the court. As a rule, small claims court costs are low, you don't need a lawyer, and the procedures are much less formal and intimidating than they are in most other types of courts. See the DOT publication *Tell It to the Judge*.

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